1716

Executive Order

Whereas, by Congressional joint resolution approved February 16, 1911 (36 Stat., 1454), it was resolved and directed that the President of the United States, acting in conjunction with the properly constituted and duly empowered authorities of the State of Texas, should have authority to re-establish and re-mark the boundary line between the Territory of New Mexico and the State of Texas, as that line had been surveyed, located and monumented by John H. Clark, and where said line had not been actually surveyed by said Clark, then by means of straight lines drawn and run between the nearest termini of the lines so surveyed by said Clark, and, for that purpose, to appoint a Commissioner, who, in cooperation with a Commissioner to be appointed by the State of Texas, would be authorized to inspect, survey, re-locate and establish the said boundary line, re-marking such of the monuments upon and along the same as might be found still existing and replacing and restoring such monuments as might have been destroyed or obliterated, all in the manner prescribed and defined in and by said resolution; and,

Whereas, in accordance with the authority so conferred upon and vested in him, the President did nominate, constitute and appoint Francis M. Cockrell, of Missouri, to be the Commissioner for and on the part of the United States in the matter of re-locating and re-establishing said boundary line, and the State of Texas did duly constitute and fully empower Sam. R. Scott to be and to act as a Commissioner for and on the part of said State in the same behalf; and,

Whereas, the said Commissioners did thereafter proceed to the performance of their duties, pursuant to their said appointments and the instructions communicated to them in that behalf, and did go upon, along and over the ground traversed by said boundary line, ascertaining, identifying and establishing the same, as was by said Congressional resolution directed, and did thereafter, to wit, on the fifth day of April, nineteen hundred and twelve, submit a full and detailed report of their proceedings and of the acts and things done and accomplished by them in the execution of their duties as such Commissioners, which said report was amended and supplemented by an additional report submitted by said Commissioners on the twentieth day of February, nineteen hundred and thirteen, for the purpose of supplying matter omitted from their original report; and,

Whereas, by said original and supplemental reports it is made to appear that the boundary line between the Territory of New Mexico, since become the State of New Mexico, and the State of Texas has been by said Commissioners carefully and accurately relocated and re-established, as enjoined and directed by the resolution of Congress hereinbefore cited, and that the boundary line as re-established has been by them properly marked and re-marked, all of which will more fully and at length appear

upon an inspection of their said reports, to which reference is made for further and more detailed information:

Now, therefore, I, WILLIAM H. TAFT, President of the United States, having been satisfied, by an inspection of the reports made and submitted by said Commissioners, Francis M. Cockrell and Sam. R. Scott, that they have well and faithfully performed and discharged the duties devolved upon them by the Congressional resolution aforesaid, their several appointments made pursuant thereto and the instructions received by them in that behalf, as aforesaid, have approved said reports and do hereby approve, confirm and establish the findings, conclusions and acts of said Commissioners in and about and for the establishment anew and further demarcation of the boundary line between New Mexico and Texas, all as shown and disclosed in and by said reports. And I do further direct that one copy of said report, including a plat of the surveyed boundary line and field notes of said survey be lodged and deposited in and as a part of the permanent records and archives of the United States General Land Office, there to be and remain a perpetual memorial of and concerning the existence and location of said boundary line, as now ascertained and re-located; and that one other copy of said report and included map and field notes be transmitted to the Governor of each of the States of Texas and New Mexico.

WM H TAFT

THE WHITE HOUSE,
Feby. 25th, 1913.

[No. 1716.]